

1.

CASE #	CASE NAME	HEARING NAME
CVME2511189	MALONE VS TEMECULA VALLEY HOSPITAL, INC.	MOTION TO COMPEL

Tentative Ruling:

The motion is denied. The preconditions for bringing a motion under subdivision (a) of section 2025.450 of Code of Civil Procedure were not met to compel the deponent's appearance at deposition.

Subdivision (a) of section 2025.450 provides in part: "If, after service of a deposition notice, a party to the action ... or a person designated by an organization that is a party ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document ..., the party giving notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection for any document ... described in the deposition notice." (Code Civ. Proc., §2025.450(a), italics added.)

Plaintiffs provide no evidence showing that a deposition actually took place for which the deponent failed to appear for examination, to proceed with, or to produce documents as requested in Plaintiffs' deposition notice to warrant an order compelling his or her attendance. (Code Civ. Proc., §2025.450(a).)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2300646	AMERICAN EXPRESS NATIONAL BANK VS WEI	MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT

Tentative Ruling:

The unopposed motion is granted. Judgment is entered in favor of Plaintiff and against Defendant in the principal amount of \$56,694.93 and costs in the amount of \$658.56.

Judgment entered, the court vacates the Hearing on Order to Show Cause re: Dismissal After Conditional Settlement set for September 8, 2027, at 8:30 a.m. The case shall be closed upon entry of the judgment.